

24SMCV05704 24SMCV05704

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-22

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Case Number: 24SMCV05704 Hearing Date: July 22, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

22, 2026

CASE NUMBER

24SMCV05704

MOTION

Substitute

Plaintiff

MOVING PARTY

Plaintiff

LCM Warehouse V LLC

OPPOSING PARTY

none

MOTION

This case arises from a dispute concerning an outstanding debt owed, secured by real property.

On November 20, 2024, Plaintiff LCM Warehouse V LLC ("Plaintiff") filed suit against Defendant Wilshire Margot SPE, LLC ("Defendant") alleging two causes of action for (1) judicial foreclosure and (2) specific performance for appointment of receiver and injunctive relief.

On November 26, 2024, the Court granted the parties' Stipulated Order on Ex Parte Application for Appointment of a Receiver and Preliminary Injunction, appointing Kevin Singer of Receivership Specialists, Inc. as Receiver for the subject property.

Default was entered against Defendant on December 15, 2025, and on March 2, 2026, Plaintiff dismissed the judicial foreclosure cause of action.

Plaintiff now moves for an order substituting 10599 Wilshire Owner LLC ("10599 Wilshire") as plaintiff in this action.

The motion is unopposed.

ANALYSIS

"An

action or proceeding does not abate by the transfer of an interest in the action or proceeding or by any other transfer of an interest. The action or proceeding may be continued in the name of the original party, or the court may allow the person to whom the transfer is made to be substituted in the action or proceeding." (Code Civ. Proc., § 368.5.)

Plaintiff

argues that the requested substitution is proper because on May 29, 2026, Plaintiff transferred all of its interest in the underlying subject loan (and this action) to 10599 Wilshire, who is now the real party in interest and proper plaintiff in this action. (Hoyl Decl. ¶¶ 2-3 and Ex. A.)

CONCLUSION AND ORDER

Finding the requested substitution is appropriate, the Court grants Plaintiff's unopposed motion to substitute 10599 Wilshire Owner LLC as Plaintiff in this action as the new real party in interest. Further, the Court will enter the proposed Order lodged on June 18, 2026 in conformity with the ruling.

Plaintiff shall provide notice of the Court's Order and file the notice with a proof of service forthwith.

DATED: July 22, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court